



Policy certificate

Insurance effected through the Coverholder:

CFC Underwriting Limited
85 Gracechurch Street
London EC3V 0AA
United Kingdom

PLEASE NOTE – This notice contains important information. PLEASE READ CAREFULLY.

This Certificate is issued by the Coverholder in accordance with the authorization granted to the Coverholder under the Binding Authority Agreement with the Unique Market Reference stated within this Policy. This Policy comprises a Certificate, the Declarations page, Wording and all other provisions and conditions attached and any endorsements issued.

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this Policy.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

In Witness whereof this Certificate has been signed by:

A handwritten signature in black ink, appearing to read 'AR H...', followed by a wavy line.

Authorized Official

Please examine this document carefully. If it does not meet your needs, please contact your broker immediately. In all communications the policy number appearing overleaf should be quoted.



DECLARATIONS

POLICY NUMBER:	ESM0139819644
UNIQUE MARKET REFERENCES:	B087523C9N5051
THE INSURED:	Barnett Engineering & Signaling Laboratories LLC
ADDRESS:	1575 Vapor Trail Ste B Colorado Springs, CO 80916 US
THE UNDERWRITERS:	Underwritten by certain underwriters at Lloyd's and other insurers
THE INCEPTION DATE:	00:01 Local Standard Time on 17 Nov 2023
THE EXPIRY DATE:	00:01 Local Standard Time on 17 Nov 2024
TOTAL PAYABLE:	USD7,500.00
Broken down as follows:	
Premium:	USD7,250.00
Policy Administration Fee:	USD250.00
TRIA:	USD0.00
TECHNOLOGY SERVICES:	Systems Engineering, Intelligence Support, Test and Evaluation, Acquisition Planning, Modeling and Simulation, Training, and Operational Concept Development
CHOICE OF LAW:	Colorado
SERVICE OF SUIT:	Mendes & Mount LLP 750 7th Avenue New York, NY 10019
LEGAL ACTION:	Worldwide
TERRITORIAL SCOPE:	Worldwide
US CLASSIFICATION:	Surplus Lines
SURPLUS LINES BROKER:	Licence No. : 594980 165 Broadway New York 10006
RETROACTIVE DATE(S):	
Professional Liability:	01 Jan 2014
REPUTATIONAL HARM PERIOD:	12 months
INDEMNITY PERIOD (CYBER AND PRIVACY cover only):	12 months
WAITING PERIOD:	8 hours
OPTIONAL EXTENDED REPORTING PERIOD:	12 months for 100% of applicable annualized premium



APPROVED CLAIMS PANEL
PROVIDERS (CYBER ONLY):

Wilson Elser
Context Security
Kivu Consulting
CrowdStrike
DOSArrest
Mullen Coughlin
Clyde & Co

CLAIMS MANAGER:

CFC Underwriting Limited
Please report all new claims to:
newclaims@cfc.com

CYBER INCIDENT RESPONSE LINE:

In the event of an actual or suspected cyber incident please call our Cyber Incident Response Team on the toll free 24-hour hotline number: 1 844-677-4155 or email cyberclaims@cfc.com

CYBER INCIDENT MANAGER:

CFC Underwriting Limited

WORDING:

Technology (US) v4.0

ENDORSEMENTS:

Complaints Notice (USA)
U.S. Terrorism Risk Insurance Act of 2002 As Amended
New & Renewal Business Endorsement
Bodily Injury And Property Damage Exclusions
Amendatory Clause (Excludes BI/PD From E&O)
War and Cyber War Exclusion Clause

DECLARATIONS

INSURING CLAUSE 1: PROFESSIONAL LIABILITY

ALL SECTIONS COMBINED

Aggregate limit of liability: USD1,000,000 in the aggregate

SECTION A: PRODUCTS AND SERVICES LIABILITY

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION B: BREACH OF CONTRACT

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION C: SUB-CONTRACTOR VICARIOUS LIABILITY

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION D: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT AND DEFAMATION

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION E: REGULATORY COSTS AND FINES

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION F: DISHONESTY OF EMPLOYEES

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION G: PAYMENT OF WITHHELD FEES

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD5,000 each and every claim, including **costs and expenses**



INSURING CLAUSE 2: NETWORK SECURITY & PRIVACY LIABILITY

ALL SECTIONS COMBINED

Aggregate limit of liability: USD1,000,000 in the aggregate

SECTION A: NETWORK SECURITY LIABILITY

Limit of liability: USD1,000,000 each and every claim

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION B: PRIVACY LIABILITY

Limit of liability: USD1,000,000 each and every claim

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION C: MANAGEMENT LIABILITY

Limit of liability: USD1,000,000 each and every claim

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION D: REGULATORY INVESTIGATION COSTS

Limit of liability: USD1,000,000 each and every claim

Deductible: USD5,000 each and every claim, including **costs and expenses**

SECTION E: PCI FINES, PENALTIES AND ASSESSMENTS

Limit of liability: USD1,000,000 each and every claim

Deductible: USD5,000 each and every claim, including **costs and expenses**

INSURING CLAUSE 3: CYBER INCIDENT RESPONSE

ALL SECTIONS COMBINED

Aggregate limit of liability: USD1,000,000 in the aggregate

SECTION A: INCIDENT RESPONSE COSTS

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD0 each and every claim, including **costs and expenses**



SECTION B: LEGAL AND REGULATORY COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION C: IT SECURITY AND FORENSIC COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim

SECTION D: CRISIS COMMUNICATION COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim

SECTION E: PRIVACY BREACH MANAGEMENT COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION F: THIRD PARTY PRIVACY BREACH MANAGEMENT COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION G: POST BREACH REMEDIATION COSTS

Limit of liability:	USD50,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

INSURING CLAUSE 4: CYBER CRIME

SECTION A: ELECTRONIC THEFT OF YOUR FINANCIAL ASSETS

Limit of liability:	USD250,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim

SECTION B: ELECTRONIC THEFT OF THIRD PARTY FUNDS HELD IN ESCROW

Limit of liability:	USD250,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim



SECTION C: THEFT OF PERSONAL FINANCIAL ASSETS

Limit of liability:	USD250,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION D: EXTORTION

Aggregate limit of liability:	USD1,000,000	in the aggregate, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION E: TELEPHONE HACKING

Limit of liability:	USD250,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION F: PUSH PAYMENT FRAUD

Limit of liability:	USD50,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION G: UNAUTHORIZED USE OF COMPUTER RESOURCES

Limit of liability:	USD250,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

INSURING CLAUSE 5: SYSTEM DAMAGE AND BUSINESS INTERRUPTION

ALL SECTIONS COMBINED

Aggregate limit of liability:	USD1,000,000	in the aggregate
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SECTION A: SYSTEM DAMAGE AND RECTIFICATION COSTS

Limit of liability:	USD1,000,000	each and every claim
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION B: INCOME LOSS AND EXTRA EXPENSE

Limit of liability:	USD1,000,000	each and every claim
Deductible:	USD5,000	each and every claim, including costs and expenses



SECTION C: ADDITIONAL EXTRA EXPENSE

Limit of liability:	USD50,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim

SECTION D: DEPENDENT BUSINESS INTERRUPTION

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

SECTION E: CONSEQUENTIAL REPUTATIONAL HARM

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim

SECTION F: CLAIM PREPARATION COSTS

Limit of liability:	USD25,000	each and every claim, including costs and expenses
Deductible:	USD0	each and every claim

SECTION G: HARDWARE REPLACEMENT COSTS

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD5,000	each and every claim, including costs and expenses

INSURING CLAUSE 6: COMMERCIAL GENERAL LIABILITY

NO COVER GIVEN

INSURING CLAUSE 7: LOSS MITIGATION

Limit of liability:	USD1,000,000	each and every claim
Deductible:	USD5,000	each and every claim

INSURING CLAUSE 8: REPUTATION AND BRAND PROTECTION

Aggregate limit of liability:	USD100,000	in the aggregate
Deductible:	USD0	each and every claim



INSURING CLAUSE 9: COURT ATTENDANCE COSTS

Aggregate limit of liability: USD100,000 in the aggregate

Deductible: USD0 each and every claim



OUR REGULATORY STATUS

CFC Underwriting Limited is authorised and regulated by the United Kingdom Financial Conduct Authority (FCA). CFC Underwriting Limited's Firm Reference Number at the FCA is 312848. These details may be checked by visiting the Financial Conduct Authority website at <https://register.fca.org.uk/>. Alternatively, the Financial Conduct Authority may be contacted on +44 (0)20 7066 1000.

We are covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation from the scheme if we cannot meet our obligations to you in respect of insurance policies that we have underwritten on behalf of insurers. This depends on the type of business and the circumstances of the claim. In respect of general insurance business the FSCS will cover 90% of the claim, without any upper limit and for compulsory classes of insurance, the FSCS will cover 100% of the claim, without any upper limit. Further information about compensation scheme arrangements is available from the FSCS.

HOW TO COMPLAIN - USA

We intend to provide an excellent service to you. However, we recognize that there may be occasions when you feel that this has not been achieved. If you are unhappy with any aspect of the service that you receive from us, please contact your insurance broker in the first instance, stating the nature of your complaint, the certificate and/or claim number.

Alternatively, you can contact us directly at complaints@cfc.com or please write to:

Chief Executive Officer
CFC Underwriting Limited
85 Gracechurch Street
London EC3V 0AA
United Kingdom

If you remain dissatisfied after we have considered your complaint and provided our response, you may have the right to refer your complaint to the Department of Insurance in your State for review.

You will be provided with further information about your complaint escalation rights to the Department of Insurance in your State by us on receipt of your complaint.

The existence of this complaints procedure does not affect your right to commence a legal action or an alternative dispute resolution proceeding in accordance with your contractual rights.



DATA PROTECTION NOTICE

We collect and use relevant information about you to provide you with your insurance cover or the insurance cover that benefits you and to meet our legal obligations. Where you provide us or your agent or broker with details about other people, you must provide this notice to them.

The information we collect and use includes details such as your name, address and contact details and any other information that we collect about you in connection with the insurance cover from which you benefit. This information may include more sensitive details such as information about your health and any criminal convictions you may have.

In certain circumstances, we may need your consent to process certain categories of information about you (including sensitive details such as information about your health and any criminal convictions you may have). Where we need your consent, we will ask you for it separately. You do not have to give your consent and you may withdraw your consent at any time. However, if you do not give your consent, or you withdraw your consent, this may affect our ability to provide the insurance cover from which you benefit and may prevent us from providing cover for you or handling your claims.

The way insurance works means that your information may be shared with, and used by, a number of third parties in the insurance sector for example, insurers, agents or brokers, reinsurers, loss adjusters, sub-contractors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases. We will only disclose your personal information in connection with the insurance cover that we provide and to the extent required or permitted by law.

We will process individual insured's details, as well as any other personal information you provide to us in respect of your insurance cover, in accordance with our privacy notice and applicable data protection laws.

To enable us to use individual insured's details in accordance with applicable data protection laws, we need you to provide those individuals with certain information about how we will use their details in connection with your insurance cover.

You agree to provide to each individual insured this notice, on or before the date that the individual becomes an individual insured under your insurance cover or, if earlier, the date that you first provide information about the individual to us.

We are committed to using only the personal information we need to provide you with your insurance cover. To help us achieve this, you should only provide to us information about individual insureds that we ask for from time to time.

You have rights in relation to the information we hold about you, including the right to access your information. If you wish to exercise your rights, discuss how we use your information or request a copy of our full privacy notice, please contact us directly at dataprotection@cfc.com.

For more information about how we use your personal information please see our full privacy notice, which is available online on our website at:

<http://www.cfc.com/privacy>



U.S. TERRORISM RISK INSURANCE ACT OF 2002 AS AMENDED NEW & RENEWAL BUSINESS ENDORSEMENT

ATTACHING TO POLICY ESM0139819644
NUMBER:

THE INSURED: Barnett Engineering & Signaling Laboratories LLC
WITH EFFECT FROM: 17 Nov 2023

This Endorsement is issued in accordance with the terms and conditions of the "U.S. Terrorism Risk Insurance Act of 2002" as amended, as summarized in the disclosure notice.

In consideration of the additional premium paid (as shown in the Declarations), it is hereby noted and agreed with effect from the Inception Date that the Exclusion relating to terrorism to which this Insurance is subject, shall not apply to any "insured loss" directly resulting from any "act of terrorism" as defined in the "U.S. Terrorism Risk Insurance Act of 2002", as amended ("TRIA").

The coverage afforded by this Endorsement is only in respect of any "insured loss" of the type insured by this Insurance directly resulting from an "act of terrorism" as defined in TRIA. The coverage provided by this Endorsement shall expire at 12:00 midnight December 31, 2027, the date on which the TRIA Program is scheduled to terminate, or the Expiry Date of this Policy whichever occurs first, and shall not cover any losses or events which arise after the earlier of these dates. The Exclusion relating to terrorism, to which this Insurance is subject, applies in full force and effect to any other losses and any act or events that are not included in said definition of "act of terrorism".

This Endorsement only affects the Exclusion relating to terrorism to which this Insurance is subject. All other terms, Conditions and Exclusions of this Insurance including applicable limits and deductibles remain unchanged and apply in full force and effect to the coverage provided by this Insurance.

Furthermore **we** will not be liable for any amounts for which **we** are not responsible under the terms of TRIA (including subsequent action of Congress pursuant to the Act) due to the application of any clause which results in a cap on **our** liability for payment for terrorism losses.

LMA5389 (Amended)
09 January 2020

**SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE
POLICY**



BODILY INJURY AND PROPERTY DAMAGE EXCLUSIONS AMENDATORY CLAUSE (EXCLUDES BI/PD FROM E&O)

ATTACHING TO POLICY ESM0139819644
NUMBER:

THE INSURED: Barnett Engineering & Signaling Laboratories LLC

WITH EFFECT FROM: 17 Nov 2023

It is understood and agreed that the following amendments are made to this Policy:

1. Part d. of **INSURING CLAUSE 1 (SECTION A only)** is deleted in its entirety.
2. The "Bodily injury" **EXCLUSION** is deleted in its entirety and replaced with the following:

Bodily injury

in respect of **INSURING CLAUSES 1 and 2**, arising directly or indirectly out of **bodily injury**.

However, this Exclusion will not apply to **INSURING CLAUSES 1 (SECTION D only)** and **2 (SECTIONS A, B and C only)** for any **claim** as a direct result of mental injury or emotional distress.

3. The "Property damage" **EXCLUSION** is deleted in its entirety and replaced with the following:

Property damage

in respect of **INSURING CLAUSES 1, 2, 3, 4 and 5**, arising directly or indirectly out of **property damage**.

**SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE
POLICY**



WAR AND CYBER WAR EXCLUSION CLAUSE

ATTACHING TO POLICY ESM0139819644

NUMBER:

THE INSURED: Barnett Engineering & Signaling Laboratories LLC

WITH EFFECT FROM: 17 Nov 2023

It is understood and agreed that the following amendments are made to this Policy:

1. The "War" **EXCLUSION** is deleted in its entirety and replaced with the following:

War and cyber war

arising directly or indirectly out of:

- a. **war**; or
- b. **cyber war**.

However, part b. above will not apply to:

- a. the **INCIDENT RESPONSE COSTS SECTION**; and
- b. that part of any claim relating to any **computer systems** which are physically located outside of an **impacted state**.

2. The following **DEFINITIONS** are added:

"Cyber war" means

any unauthorized access to or electronic attack on **computer systems**, carried out by or on behalf of a **state**, that directly results in another **state** becoming an **impacted state**.

"Impacted state" means

any **state** that suffers a major detrimental impact on its:

- a. ability to function; or
- b. defense and security capabilities;

as a direct result of any unauthorized access to or electronic attack on computer systems, carried out by or on behalf of another **state**.

"State" means

sovereign state.

"War" means

any physical:

- a. war, invasion, acts of foreign enemies, hostilities or warlike operations (whether war is declared or not), civil war, rebellion, insurrection, civil commotion assuming the



proportions of or amounting to an uprising, military or usurped power; or

- b. action taken in controlling, preventing, suppressing or in any way relating to a. above.

**SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE
POLICY**